



Delaware County Commissioners Meeting May 2nd 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=W3Is1uEASW4
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Delaware County Commissioners Meeting Report

Date: Monday, May 2, 2022

Meeting Start Time: 00:00:16

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at approximately 9:03 AM by the presiding officer. Opening statements included a moment of silence dedicated to two recently lost county employees: Adam Grimes (9-1-1 dispatcher and EMA volunteer) and Brian Franklin (retired sheriff's deputy and part-time civilian worker).
- **Attendance:**
 - **Board Members Present:** Mr. King, Mr. Henry, and Ms. Reagan (Presiding Officer/President).
 - **Members Absent:** None noted.
 - **Presiding Officer:** Ms. Reagan.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance followed by a moment of silence for departed county staff.
 - **Approval of Minutes:** 00:01:56 The minutes of the April 18th meeting were presented and approved by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
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3. Substantive Business & Board Action

- **00:02:43 Request for Magistrate Position Conversion**
 - **Sponsor / Presenter:** Judge Linda Rayleu Wolff (Delaware Circuit 3 / Presiding Judge for Delaware Circuit Courts).
 - **Deliberation Summary:** Judge Wolff requested board support to convert the existing master commissioner position into a magistrate position. By statute, local support and an application to the legislative study committee are required. A magistrate's salary and benefits are largely paid by the state, which would free up approximately \$42,000 annually in local court or county general budgets. Furthermore, unlike a master commissioner whose findings require an elected judge's signature, a magistrate's signed orders become immediate court orders, significantly speeding up resolution for litigants while remaining fully appealable.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:07:52 Third Amended American Rescue Plan (ARP)**
 - **Sponsor / Presenter:** Board Commissioners / Administration.
 - **Deliberation Summary:** The board considered the third amended American Rescue Plan. Commissioners requested to table the item to allow more time for review.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:08:17 Administrative Plats (Ashton Land Surveyors)**
 - **Sponsor / Presenter:** Kathy Van Ice (Ashton Land Surveyors).
 - **Deliberation Summary:** Presented two administrative plats previously cleared by the plat committee:
 - 1. Bethel Avenue: Right-of-way dedication.
 - 2. 850 North (Collinsville parcel): Right-of-way dedication.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:09:38 EMS 457 Retirement Plan Administrator Change**
 - **Sponsor / Presenter:** Men Continue (EMS Office Manager) / Aaron Hammond (Edward Jones).

- **Deliberation Summary:** Proposed changing the administrator and financial institution for the EMS 457 retirement plan from the current provider to Edward Jones and John Hancock. The change reduces annual administrative fees by approximately \$10,000 and expands investment options from 8 choices to a much broader selection. Officials noted the change addresses communication issues with the legacy provider.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:12:18 Digital Arts Courtroom Technology & Production Room Upgrade Contract**
 - **Sponsor / Presenter:** Presented via Jim Fluke and Mark Sletcher.
 - **Deliberation Summary:** Proposed technology upgrades to the commissioners' courtroom, including reconfigured cameras focused on the dais and audience, large screen TVs on either side, and a production room utilizing dead space in the hallway. The system will integrate with the Emergency Operations Center (EOC) for emergencies and enable remote commissioner participation, addressing deficiencies identified during COVID-19. Total project cost, including construction and excluding screens, is estimated under \$30,000.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote, authorizing up to \$30,000 for the project (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:14:31 Ordinance No. 2022-10: Creation of New Grant Fund (Introduction)**
 - **Sponsor / Presenter:** County Attorney / Board.
 - **Deliberation Summary:** Introduction-only reading of an ordinance to create a new fund for incoming state addiction and recovery grant monies. Final interlocal agreements and memorandums of understanding from the state are pending, with amendments expected at the May 16th meeting.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Introduced and approved for first reading by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:15:45 Interlocal Agreement: Delaware County High-Tech Crimes Unit**
 - **Sponsor / Presenter:** Presented with input from Prosecutor Eric Hoffman.
 - **Deliberation Summary:** An interlocal agreement assigning a Sheriff's Department deputy to the High-Tech Crimes Unit (matching the arrangement with the Muncie Police Department). The Prosecutor's Office will contribute \$50,000 from high-tech crime unit funds toward the deputy's salary and benefits. The deputy remains under the Sheriff's Office operating procedures while supervised operationally by the unit.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).

- **00:17:17 Pre-Employment Drug Testing and Clinic Transition**

- **Sponsor / Presenter:** Pam McCammon (Human Resource Director).
- **Deliberation Summary:** Addressed rising pre-employment drug screening costs at Concentra (escalated from \$15 to \$42), which created financial burdens for job applicants making \$12/hour amid high fuel prices. Proposed shifting routine pre-employment testing and workers' compensation therapy to a local clinic, which charges \$18<U+2013>\$20 per test and offers savings. Commissioners agreed that the county should directly cover pre-employment drug test fees using an existing budget line item. Additionally, officials discussed exploring expanded random drug testing policies for county staff.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).

- **00:21:36 Community Enhancement Projects (CEP) Landscaping & Statuary Maintenance Agreement**

- **Sponsor / Presenter:** Marta Moody (Executive Director, Plan Commission / Board Member, Community Enhancement Projects).
- **Deliberation Summary:** Proposed that Community Enhancement Projects (CEP) take over the maintenance of raised planters, statues, and the stormwater rain garden in front of the county building, with county reimbursement for planting materials and maintenance services (leveraging J. Crew for landscaping). Commissioners authorized the concept, directing the county attorney to draft a formal agreement for the next meeting.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).

- **00:28:04 Public Defender Office COVID-19 Case Backlog & Compensation Discussion**

- **Sponsor / Presenter:** Kelly Brian (Chief Public Defender) / Shelley Harvey (Office Manager) / Judge Linda Rayleu Wolff.
- **Deliberation Summary:** Chief Public Defender Kelly Brian and Office Manager Shelley Harvey presented a funding request utilizing rescue funds to address COVID-19-delayed felony cases and an acute staff shortage. Brian detailed that Delaware County public defenders are part-time, paid significantly below neighboring counties (e.g., \$32,900 vs. double in Jay County), leading to severe retention issues and a loss of murder-qualified attorneys despite heavy caseload caps and strict state/ABA standards. Judge Wolff echoed these concerns, emphasizing constitutional mandates to provide effective counsel for criminal, mental health, and civil liberty cases. Commissioners discussed potential long-term shifts toward full-time or hybrid public defender models and exploring council action regarding pay scales.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Informational discussion; no formal vote taken.
 - **00:37:37 Payment of Claims**
 - **Sponsor / Presenter:** County Administration.
 - **Deliberation Summary:** Presentation of regular county claims totaling \$1,396,483.73 and ARP claims totaling \$18,602.23.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
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4. Open Public Comment / Citizen Forum

- **00:48:24 Marta Moody:** Announced that an upcoming informational event regarding the "IRAQS" grant program involving the jail, commissioners, Sheriff Skinner, and the mayor will be held on Thursday at 11:00 AM at the jail auditorium.
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5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Highway Superintendent Tommy Humbert reported that the Country Village road bid process has officially been advertised in the newspaper.
 - Commissioners noted upcoming deadlines and coordination meetings regarding state grants and interlocal agreements.
 - **Adjournment: 00:49:30** Having no further business, a motion to recess/adjourn was made and approved by roll call vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
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